

Yibiao Lu and Jie Hu
17756 George Moran Dr.
Eden Prairie, MN 55347
Telephone: 763-843-2859 | Email: bill_y_lu@yahoo.com

September 15, 2026

VIA EMAIL

Kevin J. Kennedy, Esq.
Mary J. Baskfield, Esq.
Kennedy Law Firm P.C.
7616 Currell Blvd., Suite 270
Woodbury, MN 55125
kkennedy@kennedyllf.com; mbaskfield@kennedyllf.com

Re: Lu and Hu v. Fire Insurance Exchange, Hennepin County District Court, Court File No. 27-CV-26-11606 — Implementation of the September 8, 2026 Scheduling Order

Counsel:

We write to confer on six open items under the September 8, 2026 Scheduling Order. We raise them now so that none has to be raised later under time pressure, and we would rather resolve each by agreement than by motion. This letter also begins the conferral required by Minn. Gen. R. Prac. 115.10.

Thank you for your September 14, 2026 email confirming service by email and stating that Defendant is not seeking a protective order and does not object to Jeffrey Hu's review of discovery documents. We proceed on that basis. Should Defendant's position change, we ask for written notice, and we note that Plaintiffs have no counsel of record, so any designation restricting material to counsel only would bar Plaintiffs from the evidence in their own case.

1. Does March 15, 2027 close fact discovery only?

Paragraph 2 states that "[a]ll discovery must be completed by March 15, 2027," but paragraph 3 sets Defendant's expert reports at April 17, 2027 and rebuttal reports at May 14, 2027. Read literally, neither party could depose the other's expert. We assume March 15 closes **fact** discovery and ask Defendant to confirm.

We also propose the parties stipulate to a close of expert discovery, which the Order does not set. We suggest **July 16, 2027** — after the June 1 mediation deadline, a month before the August 16 pretrial conference. It disturbs no date the Court has set.

2. Which provision governs motions to exclude expert testimony?

Paragraph 5 requires all motions to be heard by May 14, 2027. The paragraph 8 NOTICE requires motions to exclude expert testimony to be filed at least 30 days before trial —

roughly August 21, 2027. These cannot both apply. We read paragraph 8 as controlling for expert-exclusion motions and ask Defendant to confirm, or to join us in asking the Court to clarify now rather than in April 2027.

3. Form of production for electronically stored information.

We propose the parties stipulate that ESI be produced in native format with metadata intact, or another reasonably usable form as agreed; that searchability and metadata not be degraded; and that responsive ESI not be printed to image or flattened. This matters here because the inspection photographs carry the capture timestamps and file data.

4. Privilege log and claw-back.

We propose the parties confirm the exchange of privilege logs under Minn. R. Civ. P. 26.02(f) and enter a non-waiver and claw-back agreement, and that the Court be asked to enter it as an order so that it binds non-parties — relevant here given the non-party discovery this case will require from the inspection firms and the appraisal panel.

5. Defendant's position on the proper party — November 16, 2026 joinder deadline.

Paragraph 1 requires any additional parties to be **joined by November 16, 2026**. Defendant's first affirmative defense alleges "a lack of jurisdiction over Defendant FIE."

Because Minn. R. Civ. P. 21 permits parties to be added only "by order of the court on motion of any party," and Minn. Gen. R. Prac. 115.04 requires a motion to be served and filed at least 21 days before its hearing — on a hearing date that must first be obtained under Rule 115.02 — any joinder motion must be on file by **late October 2026**, not November 16. Plaintiffs therefore have roughly five weeks to decide, while the documents bearing on the identity of the contracting entity remain in Defendant's possession. That is why we ask for your position by October 9.

Please state in writing by **October 9, 2026**:

- (a) whether Fire Insurance Exchange contends it is not a proper party and, if so, on what basis;
- (b) if so, which entity Defendant contends is the proper party; and
- (c) whether Defendant will stipulate either to an extension of the joinder deadline, or to Plaintiffs' amendment or substitution of the correct party without objection on timeliness grounds, should Defendant's production later establish that a different entity is proper.

A direct answer would let us avoid burdening the Court with a motion to extend the joinder deadline, which Minn. Gen. R. Prac. 111.04 would require us to bring before that deadline expires.

6. Mediation — notice to the Court due October 27, 2026.

Paragraph 6 requires the parties to notify the Court in writing of the agreed-upon neutral **and** the scheduled mediation date by **October 27, 2026**. Neither party can satisfy that alone.

Please confirm by September 29 that Defendant will engage on this, and whether it would prefer to propose names first — we are content either way. We propose the parties exchange two or three mediator candidates by **October 13, 2026**, with a view to selecting a neutral experienced in first-party property insurance coverage. If the parties cannot agree by October 27, we propose they jointly notify the Court of the impasse and ask it to appoint a Qualified Neutral under Minn. Gen. R. Prac. 114.04(b).

Paragraph 6 requires mediation to be completed by June 1, 2027, and rebuttal expert reports are due May 14, 2027. We therefore suggest scheduling the mediation for the second half of May 2027, so that both sides' expert opinions are in hand.

Preservation. Please confirm that a litigation hold is in place covering the claim files for the 2024 and 2020 claims, the adjuster's inspection records, the native files and photographs generated by Hancock Claims Consultants and Prieve Engineering, internal communications and recorded calls concerning the claim, and the claim system's audit trail.

Response requested. Please respond on items 1 through 4, on item 6, and on preservation by **September 29, 2026**, and on item 5 by **October 9, 2026**. If a telephone or video conference would be more efficient, we are glad to arrange one with at least one business day's notice.

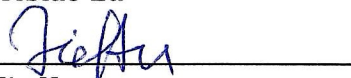
If we cannot reach agreement, we will proceed under paragraph 4 of the Scheduling Order as to any discovery dispute and under Minn. Gen. R. Prac. 111.04 as to any scheduling relief, in each case after conferring as Minn. Gen. R. Prac. 115.10 requires.

For service: the parties have agreed to service by electronic mail, and either party may withdraw that consent on notice. Service on Plaintiffs should be made to both bill_y_lu@yahoo.com and jie_h_hu@yahoo.com.

Sincerely,



Yibiao Lu



Jie Hu

Plaintiffs pro se